



Appeal Decision

Site visit made on 21 August 2026

by S. Burch BSc MSc MRTPI

an Inspector appointed by the Secretary of State

Decision date: 14 September 2026

Appeal Ref: 6010189

1391 - 1393 London Road, Norbury, London SW16 4AN

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Merkur Slots Ltd (UK) against the decision of the Council of the London Borough of Croydon.
 - The application Ref is 26/00641/FUL.
 - The development proposed is the change of use of ground floor from vacant Class E unit to Adult Gaming Centre (AGC) (Sui Generis).
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Decision

1. The appeal is allowed and planning permission is granted for the change of use of ground floor from vacant Class E unit to Adult Gaming Centre (AGC) (Sui Generis) at 1391 - 1393 London Road, Norbury, London SW16 4AN in accordance with the terms of the application, Ref 26/00641/FUL, and the plans submitted with it, subject to the conditions in the attached schedule.

Preliminary Matters

2. For reasons of precision, I have taken the address used in the heading above from the Council's decision notice. This refers to 1391-1393, whereas the address provided on the application form refers only to 1393. However, it is evident from the submitted site location plan that the appeal site also includes 1391. Furthermore, the appellant uses the address 1391-1393 in both their appeal statement and final comments document. I am therefore satisfied that the address in the heading above accurately describes the appeal site.
3. The Council refers to the revised Croydon Local Plan 2024, which has been submitted for examination. I have not been supplied with a copy of the revised plan. However, the Council's reasons for refusal does not identify any conflict with this plan and the Council outline that the policies carry limited weight, which would not outweigh current adopted policy. I have therefore based my decision on the current adopted development plan.
4. During the course of the appeal the revised National Planning Policy Framework (the Framework) was published. The main parties were provided with an opportunity to comment. I have had regard to the 2026 version of the Framework in my decision.

Main Issue

5. The main issue in this appeal is the effect of the proposed opening hours on the living conditions of neighbours, with regard to noise and disturbance.

Reasons

6. The appeal site relates to the ground floor of a three-storey building (with accommodation in the roof space) located at the junction of London Road and Semley Road. The site forms part of the Secondary Retail Frontage within a District Centre.
7. The surrounding area is relatively mixed in character. Along London Road, the area is predominately characterised by commercial uses at ground floor with accommodation on the upper floors of some properties. Indeed, the evidence sets out that there are residential properties on the upper floors of the appeal property. Semley Road is however predominately characterised by residential uses.
8. The Council's case officer report notes that there are several late-night premises within the area, a number of which operate until between 2- 3am. Whilst some interested parties dispute this point, based on the evidence before me and my observations during my site visit, I am satisfied that there are several premises in the surrounding area that operate late into the night.
9. The scheme seeks planning permission for the change of use from a Class E unit, which is currently vacant and was last used as a bank, to an adult gaming centre (AGC), falling under the Sui Generis use class. The proposed AGC would operate on a 24-hour basis, seven days a week.
10. A noise impact assessment (NIA) was submitted alongside the application. Both an internal and external noise impact assessment were carried out. Measurements from 10 operational venues across the UK owned by the appellant were used to assess potential noise impacts. Consideration was also given to the potential for open windows as part of the assessment and the positioning of the door on the corner of London Road and Semley Road.
11. In relation to internal noise, an assessment was undertaken of the potential effects arising from the proposed 24-hour operation on the residential units above the appeal site, which are the nearest noise-sensitive receptors. In determining the appropriate Noise Rating (NR) criterion required to safeguard the living conditions of occupiers, the assessment applied a threshold of NR20, which is considered sufficiently low to protect residential amenity. The report also sets out that this criterion has been adopted in previous assessments of a similar nature and has provided an adequate level of protection. Furthermore, the Council's Pollution Control Officer raised no concerns regarding the use of this threshold. In the absence of any substantive technical evidence to the contrary, I see no reason to disagree with the criterion adopted.
12. The assessment demonstrated that, once all rectification works are complete, the separating floor could attenuate operational noise levels sufficiently so that NR20 would be achieved in the first-floor unit above. Such works include checking the entire separating floor area and sealing holes with sealant or mortar to prevent flanking paths. A new double layer of 15millimetre thick fire board is also recommended, and acoustic perimeter seals should be installed around the frame of the door and at the bottom. The door should also incorporate an automatic closer system.
13. Whilst the NIA does not expressly refer to vibration noise arising from specific equipment such as pinball machines, it clearly assesses operational noise

associated with the proposed use, which would reasonably be expected to encompass noise generated by activities and equipment within the premises.

14. In relation to external noise, a baseline noise survey was undertaken between 2 and 3am at the appeal site. The NIA explains that this period was selected as it represents the most noise-sensitive time of the night. The Council has not raised any concerns regarding the use of this assessment period. In my view, the selection of this time frame is reasonable, as it is generally a period when lower background noise levels and limited activity, in comparison to the daytime, would be expected. Accordingly, in the absence of any substantive technical evidence to the contrary, I have no reason to disagree with the use of this assessment period for the purposes of evaluating external noise impacts and considering whether a 24-hour consent is appropriate.
15. The measured baseline noise levels in the area during the time period indicated that noise levels are relatively high in the area. The predominant ambient soundscape consisted of traffic on the local road network with maximum levels occurring from passing people who were observed sporadically walking and talking on the street.
16. Surveys of other Merker venues with 24-hour consent found that patrons generally arrive and leave without generating any sound. They also observed that patrons almost invariably arrived and departed on foot and did not congregate outside, or in the vicinity of, the premises. The surveys found that arrivals by car were extremely uncommon. Furthermore, patrons displayed no tendency towards shouting or other disruptive behaviour when outside, or when entering or leaving the premises.
17. An assessment of potential noise breakout to the closest residential premises located directly above was also undertaken using source noise measurements made within an existing site during peak operation. The assessment showed that the front façade would attenuate noise levels sufficiently to comply with the criteria of NR20 and British Standard BS8233:2014 (*Guidance on Sound Insulation and Noise Reduction for buildings*) (BS8233:2014) criteria for internal habitable rooms at the closest residential premises located directly above. An assessment of maximum levels demonstrated that under a worst-case and unlikely scenario, when the door is periodically open, predicted levels at the closest noise sensitive receptor would be below the criteria prescribed in BS8233:2014.
18. An assessment of the potential noise impacts arising from patrons smoking was also undertaken. The assessment found that the predicted worst-case noise levels would remain below the external night-time threshold of 60 dBA set out in the World Health Organisation's *Guidelines for Community Noise* and referenced within BS8233:2014.
19. As such, the NIA found that that noise impacts during the night are considered extremely unlikely to occur and operational noise levels from the future venue would be imperceptible against the prevailing background level during the most noise sensitive part of the night.
20. In terms of unpredictable noise events, the NIA found that random noise events are unlikely to occur and the chance of such an event occurring from other people in the area unrelated to the site is equal.

21. In order to manage unpredictable noise events, the NIA includes an Operational Management Plan (OMP) which sets out a range of control measures. These include only playing background music in the premises and prohibiting tannoy systems. It also requires that the main entrance doors are not fixed or propped open at any time whilst the premises is trading and customers are present within the venue. Several secure by design measures would also be used such external CCTV.
22. Overall, the report concludes that noise impacts are not anticipated to arise and, as such, the site is suitable for 24-hour operation. The Council's Pollution Control Officer also states that, provided the recommended mitigation measures and specifications, including the Operational Management Plan (OMP), are strictly adhered to, the proposal would be satisfactory from a noise control perspective.
23. Notwithstanding the above, the Council concludes that the proposed opening hours would be significantly longer than those of neighbouring late-night premises and that the operation of the premises during the late-night and early-morning periods would be likely to result in unacceptable noise and disturbance affecting the amenities of neighbouring occupiers. However, the Council's appeal statement goes on to state that, had the proposed operating hours been between 9:00am and 1:00pm (it appears that the Council intended to refer to 1:00am, as it is unclear why a premises within a District Centre would be expected to close at 1:00pm), the proposal could have been considered acceptable, subject to appropriate controls.
24. The Council has not however demonstrated what material difference there would be in terms of noise or disturbance impacts between the premises operating until 1:00am and operating beyond its suggested 1:00am closing time. Indeed, there is a lack of empirical or otherwise sufficiently robust evidence to demonstrate that operation beyond 1:00am would result in unacceptable noise impacts on neighbouring occupiers. The fact that there are relatively few 24-hour premises in the area does not, in itself, demonstrate that a 24-hour operation would give rise to unacceptable levels of noise and disturbance. Furthermore, much of the NIA was undertaken during the period between 2-3am.
25. To conclude, based on the evidence before me, I am satisfied that, subject to the mitigation measures and controls set out in the NIA being implemented and adhered to, the proposed opening hours would not result in unacceptable harm to the living conditions of neighbouring occupiers with regard to noise and disturbance. If I were to allow the appeal, I could impose a planning condition requiring compliance with the recommendations contained within the NIA.
26. Accordingly, I find that the proposal would comply with Policies DM10 and DM23 of the Croydon Local Plan (2018) (CLP) and Policies D13 and D14 of the London Plan (2021) (LP). Collectively, among other matters, these policies seek to protect the amenities of neighbouring occupiers, including from unacceptable levels of noise and disturbance.
27. There is nothing before me to suggest that, if a planning condition were imposed requiring compliance with the recommendations set out in NIA, those measures would not be adhered to. Indeed, should it become apparent that the requirements of such a condition were not being complied with, this would be a matter for the Council's Planning Enforcement Team to investigate and, where necessary, take

appropriate action. There is no sufficiently authoritative evidence to confirm that visitor numbers in the NIA have been downplayed or are untrue.

Other Matters

28. Concerns have been raised by interested parties regarding the potential effects of the development on the vitality and viability of the District Centre and lack of active frontage. In its case officer report, the Council acknowledges that the scheme would result in the loss of a retail unit and as such it would not strictly comply with Policy DM4.2 of the CLP. This policy states that, within Croydon's District and Local Centres, changes of use at ground-floor level must accord with Table 5.3, which identifies acceptable uses. Nevertheless, it concludes that given the site has been marketed for a retail use in excess of 18 months, with no viable user found, and the use would offer employment and services, it would be acceptable in this instance.
29. The submitted marketing evidence demonstrates that the property was actively marketed for a Class E use for a period exceeding 18 months. Based on the outcome of that marketing exercise, the letting agent advised that, in their opinion, the premises are unlikely to be occupied by a Class E retailer in the foreseeable future. They attributed the lack of interest to several factors, including the absence of a traditional shopfront and the high costs associated with fitting out the unit. The marketing agent appears to be a reputable local firm and based on the evidence before me; I am satisfied that a genuine and robust marketing exercise was undertaken. I therefore attach significant weight to their professional opinion regarding the limited prospect of securing a retail occupier.
30. The appellant has also provided evidence indicating that its business generates customer activity and footfall within town centres at levels comparable to, and in some cases exceeding, those generated by traditional retail units. The evidence further suggests that, while the majority of customers make a specific trip to visit an AGC, a proportion subsequently visit other shops and services within the centre. Although this information is based on a snapshot of a relatively small number of the appellant's branches, I nevertheless consider that it provides some support for the appellant's contention that the proposed use would be acceptable in this location.
31. With regard to the lack of an active frontage, a shop display manifestations plan has been submitted for informational purposes only, given that the appeal relates solely to the proposed change of use of the unit. Nonetheless, the plan indicates that the display would include stud walls located a minimum of 1000 millimetres away from the shopfront glazing and would contain graphics needed for compliance and company visuals. The evidence sets out that there would also be areas without a setback display allowing views further into the unit. I consider that this arrangement, together with the good levels of pedestrian footfall in the area, would provide an appropriate active frontage.
32. Overall, having carefully considered the concerns raised by interested parties regarding the potential impact of the proposal on the District Centre, I conclude that, in the specific circumstances of this case, the proposed use would be acceptable. As set out above, the Council has reached the same conclusion.
33. Concerns have been raised regarding the alleged over-concentration of similar uses within the area and the cumulative effect of this. However, there is limited

evidence before me regarding the precise distribution of directly comparable uses in the locality. Furthermore, the Council did not raise any concerns in this respect within its case officer's report. On the basis of the evidence before me, I have no reason to come to a different conclusion on this point.

34. Interested parties have suggested that the proposed opening hours of the venue would be out of character with the surrounding area. However, as set out above, I am satisfied that there are several premises in the vicinity that operate late into the evening and night. The appellant has also referred to a nearby gym that operates on a 24-hour basis. Furthermore, the Council concluded in its officer report that the proposal would not harm the character of the area. Although the Council raised concerns regarding noise and disturbance arising from the proposed opening hours, I have addressed these matters above and found that they would not result in unacceptable harm. Taking into account the site's location within a District Centre, together with the presence of other late-night uses in the surrounding area, I agree with the Council's conclusion that the scheme would not harm the character of the area.
35. Any future change of use of the unit would require planning permission, thereby allowing the suitability of any proposed use to be fully assessed before permission is granted. There is no substantive evidence before me to demonstrate that the proposal would result in unacceptable levels of light pollution. In any event, the site is located within a District Centre and a Secondary Retail Frontage, where artificial lighting associated with commercial premises and street lighting is a common and established feature of the environment. In this context, I am not persuaded that the proposed use would give rise to lighting impacts that would be materially harmful to the character of the area or to the living conditions of nearby occupiers.
36. The volume of objections received is not, in itself, a sufficient reason to dismiss the appeal. While concerns have been raised regarding the lack of pre-application discussion, there is nothing before me to indicate that the appellant was under any obligation to undertake pre-application discussions prior to the submission of the application. There is also nothing before me to indicate that the appellant was required to consult with the local police or community safety teams as part of the planning application process.
37. I am not satisfied that there is sufficient evidence before me to justify requiring further consultation with the local community through the imposition of a planning condition, if I were to allow the appeal. In this regard, the Council's officer report confirms that the application was publicised by way of notification letters sent to numerous nearby properties, thereby providing interested parties with an opportunity to comment on the proposal as part of the application process.
38. Whilst there may be operational differences between food outlets and AGC's, I note that the reference at paragraph 5.18 of the appellant's appeal statement is made in the context of identifying other late-night uses within the area, rather than suggesting that such uses are directly comparable to the proposed AGC.
39. Concerns are raised by interested parties regarding anti-social behaviour, public nuisance and crime because of the proposed scheme. The Operational Management Plan (OMP), compliance with which could be secured through a planning condition, would require individuals who are considered to be under the influence of excessive alcohol to be refused entry to the premises. No alcohol

would also be sold on the premises. Furthermore, the surveys undertaken as part of the NIA observed that patrons were generally quiet and did not behave in a manner likely to cause disturbance to others. They also found that patrons did not congregate outside, or in the vicinity of, the premises. Having carefully considered the concerns raised by interested parties, I am not persuaded that there is compelling evidence before me to indicate that the proposed use would give rise to anti-social behaviour, public nuisance or crime.

40. Whilst an interested party has stated that risk assessments undertaken for comparable Merkur venues have identified high levels of crime in the surrounding areas, no details of those assessments have been provided. Nor is there any sufficiently robust or authoritative evidence before me to substantiate that claim. In the absence of such evidence, I attach little weight to this matter in my consideration of the appeal.
41. An interested party refers to noise and nuisance from a similar venue in Streatham Hill. However, I have no further information regarding this venue before me and therefore cannot conclude if it is directly comparable to the scheme before me. The appeal relates solely to a proposal for a change of use and does not concern the grant of a license or the erection of any signage. Matters relating to age verification are controlled through separate regulatory regimes, including the gambling licensing regime.
42. Concerns have been raised regarding the effect of the proposal on highway safety and parking demand. The Council's officer report explains that the site has a Public Transport Accessibility Level (PTAL) score of 5, on a scale where 6 represents the highest level of accessibility and 1 the lowest. The Council therefore considers the site to be in a highly sustainable location and concludes that the proposed use would be unlikely to generate a significant increase in parking demand compared with the site's most recent use as a bank. Consequently, it has not identified any harm in this regard. I am also mindful that the NIA indicates that most patrons arrive and depart on foot rather than by private car. Considering the site's highly accessible location, the availability of a range of public transport options, its most recent use, and the findings of the NIA, I am satisfied that the scheme would not result in unacceptable impacts on highway safety or parking demand.
43. I am mindful that the appeal building is a locally listed building and is situated within a Local Heritage Area. However, the appeal proposal does not include any alterations to the existing external façade of the building. The Council therefore conclude that the proposal would not harm the appearance of either the locally listed building or the wider Local Heritage Area. Given that the external appearance of the building would remain unchanged, I agree with that conclusion. Any proposals for signage would be subject to separate assessment by the Council through the appropriate planning or advertisement consent process.
44. In addition to the matters addressed above, interested parties have raised concerns relating to the potential effects of the development on the nearby Bismillah Cultural Centre, the Norbury Baptist Church, the Norbury Islamic Academy and the Norbury Muslim Centre, including the ability to practice freedom of religion or belief. Concerns are also raised regarding the effect of the proposed scheme on children, including those from nearby primary schools and a nursery, elderly worshippers and residents of the nearby specialist care home. I have

therefore had due regard to Article 9 of the Human Rights Act 1998 and the Public Sector Equality Duty (PSED) under the Equality Act 2010. Religion or belief, age and disability are relevant protected characteristics to which the PSED applies. These rights are engaged in reaching my decision which includes having due regard to the need to eliminate discrimination, advance equality of opportunity, and foster good relations between persons who share a relevant protected characteristic and persons who do not. However, they are qualified rights, and interference may be justified where in the public interest. The concept of proportionality is key.

45. I acknowledge the concerns raised regarding noise and disturbance and the effect of this on worshipping and other activities in a peaceful, calm and welcoming environment. I also appreciate concerns raised in relation to noise and disturbance on residents of the nearby specialist care home. However, as set out above, I am satisfied that, subject to the mitigation measures and controls set out in the NIA being implemented and adhered to, the scheme would not result in unacceptable harm to the amenities of nearby occupiers of nearby Cultural Centres, Academies, Churches and the care home, with regard to noise and disturbance.
46. I also appreciate the severity of the concerns raised in relation to the safety and security of Muslims. However, as set out, there is a lack of firm evidence to demonstrate that the proposal would materially increase the risk of anti-social behaviour or crime. Furthermore, the evidence outlines how the appellant has submitted a premises license application which requires them to demonstrate adherence to the Gambling Act 2005 licensing objectives, which include preventing gambling from being a source of crime or disorder, amongst other things. Also, the surveys found that patrons displayed no tendency towards shouting or other disruptive behaviour when outside, or when entering or leaving the premises.
47. There is no robust evidence before me to demonstrate that the green outside Norbury Baptist Church would become a gathering place because of the proposal. As set out, the NIA found that patrons did not tend to congregate outside the site.
48. Concerns are raised regarding the impact of gambling on vulnerable people, including those in financial difficulty and those struggling with addiction, amongst other issues. The Gambling Act 2005 however requires the appellant to demonstrate compliance with various licensing objectives including protecting vulnerable people from being harmed or exploited by gambling. As such, whilst I appreciate the concerns raised, I do not find any planning harm in this regard.
49. Children, including those attending youth activities at the nearby Islamic Academy, may pass the site throughout the day. Residents of the nearby specialist care home would also live near it. The Gambling Act 2005 requires the appellant to demonstrate compliance with the licensing objectives, including the protection of children and other vulnerable persons from being harmed or exploited by gambling. Furthermore, the appellant is regulated and licensed by the Gambling Commission and operates a "Think 25" policy, whereby any person who appears to be under the age of 25 is required to provide an acceptable form of photographic identification to enter the premises. Compliance with this policy would be subject to regular independent testing at the premises, as explained in the evidence.

50. Concerns have also been raised regarding elderly worshippers, families and other individuals attending the nearby mosque who may pass the site when travelling to and from prayer and other community activities. However, while I acknowledge the concerns expressed by interested parties, I do not consider that the proposal would give rise to planning harm in this respect.
51. Consequently, the impacts of the proposed development on nearby Bismillah Cultural Centre, the Norbury Baptist Church, the Norbury Islamic Academy and the Norbury Muslim Centre and on children, the elderly and residents of the nearby specialist care home are deemed acceptable. It is therefore proportionate in the circumstances to allow the appeal when considering the well-established and legitimate planning purposes of national and local planning policies.

Conditions

52. The Council has suggested a number of conditions which I have considered in light of the advice in the Framework and Planning Practice Guidance. Where appropriate, I have adjusted the wording of the conditions in the interests of precision and enforceability.
53. In addition to the standard time condition, I have imposed a condition requiring that the development is carried out in accordance with the approved plans, for the avoidance of doubt and in the interests of certainty.
54. In the interests of the living conditions of neighbours, I have imposed a condition requiring compliance with the recommendations set out in Appendix C of the NIA. This condition would ensure that the mitigation measures identified in Appendix C are implemented prior to the first operation of the AGC and retained thereafter. For the same reason, I have also imposed a condition requiring the use to operate in accordance with the measures set out in the OMP and the Secured by Design Measures document.
55. I have imposed a condition requiring the submission of a Waste Management Strategy prior to the first use of the AGC. The information provided in respect of refuse storage, management and collection arrangements is limited. Consequently, a condition is necessary to ensure that adequate arrangements are secured in the interests of the character and appearance of the area and the living conditions of neighbours. For the avoidance of duplication, I have combined the Council's suggested conditions relating to these matters.
56. Although not included within the Council's list of suggested conditions, the case Officer report indicates that the provision of four cycle parking spaces is necessary to ensure compliance with relevant planning policies. In the interests of promoting sustainable transport, I have therefore imposed a condition requiring the use of the AGC. This would ensure that adequate cycle parking provision is secured for users and staff of the development.
57. I have not imposed the condition requiring compliance with certain submitted documents, including the Design and Access Statement, Heritage Statement and Planning Statement, as I do not consider it to be necessary. Matters requiring control are adequately secured through other conditions.
58. The Council's suggested condition requiring the submission of details and samples of external facing materials is also unnecessary, as no alterations to the external

appearance of the building are proposed. Similarly, the suggested condition relating to window display areas is neither necessary nor reasonable, given that planning permission is not required for internal window displays. Furthermore, I do not consider the suggested condition relating to timber-framed windows and doors to be relevant to the proposal before me, which relates solely to the change of use of the premises.

59. I have not imposed the Council's suggested condition relating to opening hours. As set out above, I am satisfied that, subject to the implementation of, and ongoing compliance with, the recommendations and measures identified in the NIA, the proposed opening hours would not give rise to unacceptable harm to the living conditions of neighbouring occupiers in terms of noise and disturbance. Accordingly, I do not consider such a condition to be necessary.
60. I have also not imposed the suggested conditions relating to noise limiters or noise from air handling units, mechanical plant and musical equipment. The evidence indicates that only background music would be played, rather than amplified sound. Furthermore, the evidence demonstrates that operational noise levels, particularly from music, would be low, averaging around 65 dB, which is significantly below the 85 dB threshold typically associated with noise-limiting cut-out devices. The NIA also demonstrates that noise breakout would remain compliant with the relevant noise criteria even where windows and doors are partially open. On the basis of the evidence before me, I am therefore not satisfied that such conditions would be necessary or reasonable.
61. I also do not consider the Council's suggested condition relating to sound insulation to be necessary. The implementation of appropriate sound insulation measures is adequately secured through the condition requiring compliance with the mitigation measures set out in Appendix C of the NIA. Furthermore, the Council's Pollution Control Officer confirmed that the recommendations and specifications contained within the NIA would be satisfactory for noise control purposes. In these circumstances, I am not satisfied that a separate condition relating to sound insulation would be necessary.
62. The Council's Pollution Control Officer also appears to have suggested several additional conditions; however, these do not form part of the Council's suggested list of conditions. In any event, having regard to the nature of the proposed use, I do not consider a condition requiring the submission of a Delivery and Servicing Plan to be necessary, as deliveries are likely to be minimal. Given the location of the site within a District Centre, where artificial lighting is commonplace, I do not consider a condition relating to lighting to be necessary. I am also not satisfied that sufficient evidence has been provided to demonstrate the need for a condition requiring any boilers to meet specified standards.

Conclusion

63. For the reasons given above, and having regard to all other matters, I conclude that the development would comply with the development plan as a whole. The appeal is therefore allowed.

S. Burch - INSPECTOR

SCHEDULE OF CONDITIONS

- 1) The development hereby permitted shall begin not later than 3 years from the date of this decision.
- 2) The development hereby permitted shall be carried out in accordance with the following approved plans: Site Location Plan, No Drg No., Site Plan, No Drg No., Proposed Ground Floor, Drg No. 924-PL-101 Rev 2., Proposed Display Manifestation, Drg No. 924-PL-106 Rev 04 (excluding details of proposed internal window displays).
- 3) Prior to first use of the AGC, the recommendations set out in Appendix C of Noise Assessment, ref PR2001_226_FINAL, dated 15/12/2025 shall be implemented. The recommendations shall be thereafter retained for the lifetime of the development.
- 4) The approved use shall be operated in compliance with the measures specified within the 'Operational Management Plan- Control Measures' and in 'Appendix E- Merkur Slots Operational Management Plan' in the Noise Assessment, reference PR2001_226_FINAL, dated 15/12/2025 and 'Secured by Design Measures' document.
- 5) Prior to first use of the AGC, a waste management strategy shall be submitted to and approved in writing by the Local Planning Authority. The agreed strategy shall be implemented in accordance with the agreed details, prior to first use of the AGC, and retained for the lifetime of the development. The waste strategy shall:
 - specify those bins to be collected by the Council's waste contractor;
 - specify those bins to be collected by a private contractor, to include details of frequency of service provision and any need for on-site management; and
 - include the detailed design, location and appearance of bin stores and bin presentation points.
- 6) Prior to first use of the AGC, details of cycle parking shall be submitted to and approved in writing by the Local Planning Authority. The approved cycle parking shall be implemented in accordance with the agreed details prior to first use of the AGC and shall be retained for the lifetime of the development.

****END OF SCHEDULE****